

Just Let People Have Cellphones in Prison

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In 2017, a man named Willie Nash was booked into a Mississippi county jail on a misdemeanor charge. For reasons that aren't clear, his cellphone wasn't confiscated as the law dictated. When he asked a jailer for a charger, the phone—which he had been using to text his wife—was seized. Nash was then sentenced to 12 years for possessing the cellphone. The case went all the way up to the Mississippi Supreme Court, where the 12-year sentence was affirmed. “While obviously harsh,” Justice James D. Maxwell II wrote for the court, “Nash’s twelve-year sentence for possessing a cell phone in a correctional facility is not grossly disproportionate.”

Mr. Nash, a father of three, will be released back to his family in January of 2029, for the crime of texting his wife from jail. In all federal and state prisons and jails, personal cellphones are classified as contraband—illegal for incarcerated people to possess. Incarcerated people are allowed to communicate with loved ones via letters, expensive phone calls in a centralized location (done through a prepaid account or collect calls, for a limited amount of time), or sometimes through expensive email and video messages on a prison-issued tablet. Due to COVID-19, in-person visitation has been halted in most prisons and jails since last March.

These rigid policies isolate incarcerated people and weaken their ties to friends and family. And this isolation radiates harm well beyond each individual. The vast majority of the millions of people currently incarcerated in this country will, at some point, be released. Every year, roughly 600,000 people leave prisons across the U.S., and a much higher number cycle in and out of jails. Roughly 2.7 million children in the U.S. have an incarcerated parent. “For people isolated from the world, hearing a loved one’s voice or a grandbaby coo for the first time is healing,” former death row resident Jarvis Jay Masters wrote in the *Guardian*. There is a wealth of research that confirms that the stronger the relationships and connections to loved ones and community, the better a person will fare once they are released from prison or jail. We’ve known this for a long time. A study from 1972 noted that, “The central finding of this research is the strong and consistent positive relationship that exists between parole success and maintaining strong family ties while in prison.” Decades later, the findings remain the same. “Incarcerated men and women who maintain contact with supportive family members are more likely to succeed after their release,” a 2012 Vera Institute report found.

There is one obvious way to facilitate these community ties: allow incarcerated people to have cellphones. For more than a decade, jailers and elected officials have attempted to incite a moral panic in the general public around the danger of cellphones, warning that incarcerated people would only use them to organize hits and buy drugs and run gangs on the outside.

It's true that some incarcerated people have used contraband phones to extort people on the outside. But targeting the tools rather than the roots of the corruption and violence within prisons is misguided. A full decade ago, the New York Times conceded that the harsh penalties and increased vigilance weren't working to keep phones out of prisons: "The logical solution would be to keep all cellphones out of prison. But that is a war that is being lost, corrections officials say." That hasn't changed. If you want to find a cellphone in prison or jail now, you can. One former sheriff in South Carolina even allowed detainees in his jail to purchase cheap cellphones from commissary, arguing access to cellphones actually improves safety. "This adds another method of safety to our facility because it takes away the mischief of the inmates sitting back there 24 hours a day with nothing to do," he told a local TV station. "Fighting. Different things. Confrontation with corrections officers."

The reality is that prisons and jails are already saturated with cellphones (mostly smuggled in by correctional officers), and the vast majority of people use them in the exact same ways the vast majority use them on the outside: to stay connected. To stave off boredom. To learn. To laugh.

These contraband phones have become even more crucial over the past year as other methods of communication have shut down. When COVID-19 began to tear through cell blocks across the country last spring, prison and jail administrators responded in the only way they knew how: lockdowns. With visitation halted and access to phones and out-of-cell time restricted, panicked family members and loved ones were left in the dark, frantically posting to Facebook groups and calling facilities, desperate for news.

Cellphones—particularly smartphones, because of the ability to easily record and share videos and pictures—provide some modicum of transparency, a window into an otherwise opaque system. In April, CNN played video shot on a smartphone from inside an Alabama prison, where incarcerated people pleaded for help as COVID-19 spread: "Death is imminent for us," one man said. Many more videos that incarcerated people have shared on social media over the past few years reveal the deplorable conditions they are forced to live in, from no electricity to backed-up toilets to rat infestations to moldy food. Video from Georgia's Macon State Prison, where a record seven homicides occurred last year, shows brown sludge coming out of the faucets. When Jennifer Bradley's son, Carrington, was stabbed to death at Macon, she learned about it from his

friends at the prison, who contacted her on a contraband cellphone. The Georgia Department of Corrections never gave her an explanation.

While doing little to keep phones out of prisons, the ban on cellphones has mainly served as an excuse to punish incarcerated people for exposing the reality of life behind bars. One incarcerated man posted a video on Facebook Live pleading for help amid a massive coronavirus outbreak at a federal prison in Ohio. After the video went viral, his brother told Vice, he was sent to “the hole” as punishment for having a contraband phone. Incarcerated organizers have also used cellphones to help organize labor and hunger strikes, drawing further attention to the atrocities of prison. The charge of contraband has been used repeatedly as a pretext to crack down on uprisings and restrict rights.

It’s not all grim, though. A scroll through prison TikTok will reveal everything from how to MacGyver loose electrical wires to boil water to recipes for “prison pizza”—and then there are, of course, the TikTok dances. People are risking retaliation to show that they too have joy, in the midst of darkness.

The desire to punish is a deeply human one, but we should know by now that policies based on revenge never end well, especially when we know that those policies actually result in more harm. Access to cellphones—that is, access to love, connection, transparency, and a window to the outside world—is one simple but vital step to reduce those harms. Those who believe incarceration should be maximally harsh and devoid of joy or connection must reckon with reality: The more we isolate and torture people in cages, the less safe we all become.